

Memorandum for Record – Limiting Competition at or below the Simplified Acquisition Threshold

1. Contracting Activity: Army Contracting Command, New Jersey (ACC-NJ)(CCNJ-JA)

2. Description of Action: VxWorks Software licenses and renewal/support

☐ Nature: New Requirement ☒ Follow-on Requirement

Contract Vehicle: ☒ Purchase Order Number TBD

☐ Blanket Purchase Agreement (BPA) Number _____

☐ Order/BPA# _____

☐ Order # _____ against Multiple Award Indefinite Delivery/Indefinite Quantity (IDIQ)
Contract Name or # _____

☐ Order # _____ against a single award Indefinite Delivery Contract (IDC)

☐ Modification # _____ to existing Purchase Order/Task Order/Delivery Order/Call Order

Pricing/Contract Type: ☒ Fixed Price ☐ Time & Materials/Labor Hours ☐ Cost
Reimbursable ☐ Hybrid

Name of Proposed Contractors and Addresses:

USI Electronics (a division of Avnet Inc.)

CAGE Code: 1W091

SAM UEID: Z2VAJVVHTKD5

2775 West Cypress Creek Road

Fort Lauderdale, Florida 33309

Wildflower International, Ltd.

CAGE Code: 079R2

SAM UEID: TK17ZGD5YNA9

1516 Pacheco Street, Suite A

Santa Fe, New Mexico 87505

Brand Name Buy: ☒ Yes ☐ No

3. Description of Services or Supplies: The Government requires VxWorks 6.9 and VxWorks 7 commercial software support and maintenance necessary to maintain an organic support capability for [REDACTED]

[REDACTED] The commercial software support and maintenance is vital to the functional integrity and configuration control of these systems. This commercial software license procurement and associated maintenance promotes the state-of-the-art remote weapons technology that ultimately [REDACTED] [REDACTED] develop, acquire, field, and sustain these systems in support of their [REDACTED]. In-line with the Army's mission to pursue category management, the software requirements can be procured on one contract vehicle for all requiring activities.

Base Period: Software Licenses run January 2026 – December 2026

IGE Value: [REDACTED]

4. Authority:

☒ Federal Acquisition Regulation (FAR) 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

Or

☐ FAR 8.405-6(a)(1)(i)(B) and 8.405-6(b)(1) Brand Name

☐ FAR 8.405-6(a)(1)(i)(A) Urgency

☐ FAR 8.405-6(a)(1)(i)(B) Only One Source is Capable

☐ FAR 8.405-6(a)(1)(i)(C) Logical Follow-on

Or

☐ FAR 16.505(b)(2)(i)(B) Only One Awardee is Capable

☐ FAR 16.505(a)(4) Brand Name

☐ FAR 16.505(b)(2)(i)(A) Urgency

☐ FAR 16.505(b)(2)(i)(C) Logical Follow-on

☐ FAR 16.505(b)(2)(i)(D) Minimum Guarantee

5. Reasons for Authority Cited:

This Government requirement requires the use of the authorities cited above in Paragraph 4.0 because the requirements above were developed utilizing source code with the brand name “VxWorks” Real-Time Operating System (RTOS), Version 6.9 and 7.0. Wind River Systems is the sole developer and manufacturer of the VxWorks operating system. Overall, the source code is

[REDACTED]

(a) This requirement is a brand name restricted purchase as the Government requires the access to commercial software, VxWorks, Version 6.9 and 7.0. This software code [REDACTED] [REDACTED] therefore, this requirement does not lend itself for full and open competition since no other software could be reasonably configured to the aforementioned systems. Configuring other software would require a reconstruction of the [REDACTED] of the aforementioned systems. It would also require significant time and integration efforts. This could not be accomplished by January 2026 when the software licenses and maintenance are needed. This would also cost an unacceptable amount, and further, would require an unacceptable amount of resources for re-engineering.

It is imperative that the tools and environments used by the above systems utilize the original equipment manufacturer VX Software in order that the program output is identical. Other similar software would result in a mismatch in operating system and workbench tool versions, and functions, which would lead to divergence in software behavior and an inability to replicate problems and verify requirements compliance. Ultimately, this would degrade the user’s ability to [REDACTED] which would result in degraded assets, which is unacceptable. Awarding this contract for VxWorks will provide for compatibility with the existing software currently used for the above systems, and it would not require any changes to the existing software. It would also allow for the reproduction, recreation, and recompiling for post-production software. These benefits could not be realized with other software.

(b) Alternatives to using the VxWorks software were considered, such as competing the requirement and identifying another software platforms, but this was determined to not be feasible due to significant duplication costs, and unacceptable schedule and technical integration risk. The requesting office considered the following when developing the duplication costs associated with another potential software solution.

U.S. Army Combat Capabilities Development Command (DEVCOM) considered the total cost associated with developing new software and configuring it with the systems. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

(c) Technical data packages, specifications, engineering descriptions, statement of work or purchase descriptions suitable for full and open competition are not available because VxWorks is proprietary to Wind River Systems.

6. Publicizing Contract Actions: For FAR Part 13 actions, the public display and synopsis requirements of FAR 5.101 and FAR 5.203 ☐ do not apply due to the \$ threshold, ☒ apply and will be followed, or ☐ do not apply due to an exception at 5.202 _____.

Requirement to post justification in accordance with FAR 8.405-6(b)(3), FAR 13.105(c), or FAR 16.505(a)(4)(iii)(A)

☐ Action is NOT a brand name restriction and is under \$150K, no posting required

☐ Action is a brand name restriction, under \$25K, no posting required

☒ Action is a brand name restriction, over \$25K. It will be redacted and posted with the solicitation.

☐ Action is a brand name restriction over \$25K but will not be posted due to exception:

☐ FAR 6.305(f)☐ FAR 8.405-6(b)(3)(iii)(A)☐ FAR 8.405-6(b)(3)(iii)(B)☐ FAR 8.405-6(b)(3)(iii)(C)☐ FAR 16.505(a)(4)(iii)(C)

7. Market Research: Market Research was performed from November 2021 to December 2025. Research utilized all required agencies and sources under FAR Part 8 and Defense Federal Acquisition Regulation Supplement (DFARS) Part 208 and the only source for this product is Wind River Systems. Wind River has a Government resale agreement through USI Electronics and Wildflower as the only authorized resellers of the software through a license agreement. A letter dated 23 March 2026 from Wind River System annotates this and confirms the competitive situation.

8. Other Facts:

Contract number: W15QKN-19-P-0098

Award date: 01 January 2021

Period of Performance: 01 January 2021 to 31 December 2021. Value: [REDACTED]

Program: Wind River Systems VxWorks V6.9 SW License & Technical Support & Maintenance: Sole Source

Authority: 10 U.S.C. 2304(c)(1) as implemented by FAR Part 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. Sole source to Avnet.

Contract number: W15QKN-20-C-0013

Award date: 19 March 2020

Period of Performance: 19 March 2020 to 19 March 2021. Value: [REDACTED]

Program: Wind River Systems VxWorks V6.9 SW License & Technical Support & Maintenance: Sole Source

Authority: 10 U.S.C. 2304(c)(1) as implemented by FAR Part 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. Sole source to Avnet.

Contract number: W15QKN-21-P-0072

Award date: 13 July 2021

Period of Performance: 13 July 2021 to 13 July 2022. Value: [REDACTED]

Program: Wind River Systems VxWorks V6.9 SW License & Technical Support & Maintenance: Sole Source

Authority: 10 U.S.C. 2304(c)(1) as implemented by FAR Part 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. Sole source to Avnet.

Contract number: W15QKN-22-P-0004

Award date: 15 December 2022

Period of Performance: 15 December 2021 through 31 December 2022: Value: [REDACTED]

Program: Wind River Systems VxWorks, Version 21.11

Authority: 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

Contract number: W15QKN-24-P-0006

Award date: 01 January 2024

Period of Performance: 01 January 2024 to 31 December 2024. Value: [REDACTED]

Program: Wind River Systems VxWorks V6.9 SW License & Technical Support & Maintenance: Sole Source

Authority: 10 U.S.C. 2304(c)(1) as implemented by FAR Part 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. Sole source to Avnet.

Contract number: W15QKN-25-PA043

Award date: 25 June 2025

Period of Performance: 01 January 2025 to 31 December 2025. Value: [REDACTED]

Program: Wind River Systems VxWorks V6.9 SW License & Technical Support & Maintenance: Sole Source

Authority: 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

9. Technical/Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

10. Contracting Officer Certification/Approval:

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based upon a price analysis between the proposed prices and the independent Government Estimate (IGE).

I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a sole source is in the best interest of the Government. Additionally, I approve this justification to limit competition subject to the availability of funds and provided that the services or supplies herein described have otherwise been authorized for acquisition.

Typed Name: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]